The Council · AI GOVERNANCE

# Fundamental Rights Coverage Crosswalk

EU AI Act Article 27 (FRIA) design mapping to Council assessments — not case evidence and not a substitute for a case-specific FRIA

## Document control

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| Document ID | AIG-ASS-12 |
| Version | 1.4 draft |
| Status | Draft for Council review |
| Document owner | AI Governance Lead |
| Approving authority | Pending — competent Council authority under confirmed Constitution / Scheme of Delegation; AI Assurance Board assurance input does not itself confer approval authority. |
| Effective date | Pending formal approval |
| Classification | OFFICIAL |
| Companion to | AIG-ASS-04, AIG-ASS-05, AIG-ASS-06, AIG-ASS-07 and AIG-OPS-04; sits alongside the ISO/IEC 42001 Clause-Level Crosswalk (AIG-AIMS-12) |

## Change history

| *Version* | *Date* | Change summary | *Owner* |
|---|---|---|---|
| 1.0 draft | 15 September 2026 | First draft (date taken from the document properties). | AI Governance Lead |
| 1.1 draft | 29 September 2026 | QA remediation — applied findings QA-008, QA-017, QA-078, QA-200 (see QA change log). Change-history table added. | AI Governance Lead |
| 1.2 draft | 30 September 2026 | v3.9.1: standards cross-reference note updated to the 54-entry requirement inventory (AIG-AIMS-05 REQ-054, Civil Contingencies Act 2004, added). | AI Governance Lead |
| 1.3 draft | 1 October 2026 | v3.9.3: standards cross-reference note cites the 55-entry requirement inventory (AIG-AIMS-05 REQ-055, NIST AI 600-1 Generative AI Profile, added). | AI Governance Lead |
| 1.4 draft | 2 October 2026 | v3.9.5: standards cross-reference note cites the 56-entry requirement inventory (AIG-AIMS-05 REQ-056, SI 2026/425 ICO statutory code of practice on AI and automated decision-making, added). Proposed — for Council confirmation. | AI Governance Lead |
| 1.5 draft | 12 October 2026 | v3.9.10: standards cross-reference note cites the 58-entry requirement inventory (AIG-AIMS-05 REQ-057 DAMA-DMBOK and REQ-058 ISO/IEC 5259, added as voluntary data governance references). Proposed — for Council confirmation. | AI Governance Lead |

## Purpose and legal status

**Coverage join —** AIR-ID (system): _____; UC-ID(s) covered: _____. Identify the use, rights topic, affected group, evidence, gap and action for each mapping. Unknown or conflicting coverage is unverified. This crosswalk is not the decision record or approval.

[PROPOSED CORRECTION — OWNER VALIDATION REQUIRED] This document is a design mapping of Article 27 FRIA elements to potentially relevant Council assessment artefacts. It does not show that those assessments exist, are current or complete, or that any Article 27 element has been satisfied for a system. It does not answer a system-specific FRIA question or replace a case-specific assessment; the relevant owner must record evidence and applicability for each deployment.

[PROPOSED CORRECTION — LEGAL/DPO VALIDATION REQUIRED] Article 27 duties depend on the EU AI Act's territorial/material scope, deployer role and high-risk classification; no blanket conclusion about Council scope is made

here. The consolidated Regulation (EU) 2024/1689, as amended by enacted Regulation (EU) 2026/1744, sets Article 113 application dates of 2 December 2027 for Annex III high-risk systems and 2 August 2028 for Annex I high-risk systems. These dates do not establish that a Council deployment is in scope or that other provisions share those dates. Confirm case-specific scope, role, exceptions, transitional provisions and dates against the current official texts; this mapping is not legal advice.

Article 27 crosswalk

| *Art. 27* | *What the element requires* | Council assessment(s) | *Proposed design mapping only — case evidence and completion not established* |
|---|---|---|---|
| Art. 27(1)(a) | A description of the deployer's processes in which the high-risk system will be used, in line with its intended purpose. | Intake Form (AIG-INV-03); Model Card (AIG-ASS-09) | Potential record route: intake may describe purpose and process; model card may record intended/out-of-scope use. Verify actual, versioned case records; mapping alone is not evidence. |
| Art. 27(1)(b) | The period of time and frequency in which each system is intended to be used. | Register (AIG-INV-04); Deployment and Rollout Plan (AIG-OPS-01); Model Card (AIG-ASS-09) | Potential record route: register, rollout plan and model card may record intended period/frequency. Verify actual case records and dates; mapping alone is not evidence. |
| Art. 27(1)(c) | The categories of natural persons and groups likely to be affected in the specific context. | Equality Impact Assessment (AIG-ASS-06); DPIA (AIG-ASS-05); Human Rights Assessment (AIG-ASS-07) | Potential record route: equality, privacy and human-rights assessments may identify affected groups. Verify affected categories from completed, current system-specific evidence; do not infer coverage. |
| Art. 27(1)(d) | The specific risks of harm likely to affect those categories of persons or groups. | Equality Impact Assessment (AIG-ASS-06); Human Rights Assessment (AIG-ASS-07); Responsible AI Assessment (AIG-ASS-04); Risk Assessment Worksheet (AIG-ASS-02) | Potential record route: equality, human-rights, responsible-AI and risk assessments may identify harms. Verify actual risks and assessment evidence for the specific context; mapping alone does not satisfy the element. Note: AIG-ASS-07 screens Convention rights under the Human Rights Act 1998, which do not cover every EU Charter right (see the Charter rights table below). |
| Art. 27(1)(e) | The implementation of human oversight measures, per the instructions for use. | Playbook §4.7.7 Human Oversight Controls; Responsible AI Assessment (AIG-ASS-04); Risk Assessment Worksheet (AIG-ASS-02) | Potential record route: playbook oversight design and system assessments may identify planned measures. Verify actual instructions, implemented oversight and case evidence; a design reference is not implementation evidence. |
| Art. 27(1)(f) | The measures to be taken if those risks materialise, including internal governance and complaint mechanisms. | Contestability and Redress Control (AIG-OPS-04); Incident Report Form (AIG-OPS-03); Nonconformity and Corrective Action (AIG-AIMS-08); Post-Deployment Monitoring and Review Log (AIG-OPS-02); Governance | Potential record route: redress, incident, corrective-action, monitoring and decision records may address measures if risks materialise. Verify current mechanisms, case-specific measures and records; mapping alone is not evidence. |

| *Art. 27* | *What the element requires* | Council assessment(s) | *Proposed design mapping only — case evidence and completion not established* |
|---|---|---|---|
| | | Decision Record (AIG-DEC-03) | |
| Art. 27(2) | The duty applies to the first use of the high-risk system; in similar cases the deployer may rely on an earlier FRIA or an existing provider impact assessment, and must update the information if any element changes or is no longer up to date. | Register (AIG-INV-04); Post-Deployment Monitoring and Review Log (AIG-OPS-02); Gate Log (AIG-DEC-04); Governance Decision Record (AIG-DEC-03) | Potential record route: register change history and monitoring or reassessment triggers may prompt an update. Verify that the FRIA itself is updated; reliance on an earlier or provider assessment must be justified case by case. |
| Art. 27(3) | Once the assessment has been performed, notify the market surveillance authority of its results, submitting the completed template referred to in Art. 27(5), unless exempt under Art. 46(1). | No existing Council artefact; Legal/DPO to own the notification route | Gap: no Council record route is mapped. Legal/DPO to confirm whether notification applies to the case and record the notification and completed template in the case file. |

## Notes on use

[PROPOSED CORRECTION — OWNER VALIDATION REQUIRED] Article 27(4) requires the FRIA to complement, not automatically substitute for, any applicable data-protection impact assessment (DPIA). A DPIA remains required where data-protection law requires one. If permitted and appropriate, the work may be coordinated or combined only if every required FRIA element and every applicable DPIA requirement is separately covered and evidenced; neither document is presumed to satisfy the other.

[PROPOSED CORRECTION — LEGAL/DPO VALIDATION REQUIRED] Any Article 27 notification obligation applies only where the deployer and system are within scope and the statutory conditions are met. Confirm the current notification route, authority and timing for the specific case; no blanket conclusion that a route is or is not engaged is made here.

[PROPOSED CORRECTION — OWNER VALIDATION REQUIRED] This crosswalk maps the six Article 27(1) elements, and the Article 27(2) and 27(3) duties, to potential evidence locations only. It is not evidence that any element is satisfied and not a substitute for a case-specific FRIA. It does not establish that any element is satisfied, that existing assessments are complete, or that a standalone FRIA is unnecessary. Record case-specific applicability and actual assessment evidence before making a conclusion.

## Charter rights coverage (supplementary)

[PROPOSED ADDITION — LEGAL VALIDATION REQUIRED] A FRIA assesses impacts on rights in the EU Charter of Fundamental Rights. The Council's Human Rights Assessment (AIG-ASS-07) screens Convention rights under the Human Rights Act 1998, which differ from the Charter. The table below maps the main Charter rights most likely to arise in council AI use to Council assessments and flags Charter-only or broader rights for Legal Services. It is a design aid, not a legal conclusion.

| *Charter right* | *Nearest ECHR or domestic equivalent* | Council assessment(s) | *Flag for Legal* |
|---|---|---|---|
| Art. 8 Protection of personal data | ECHR Art. 8 (private life) in part; UK GDPR and DPA 2018 | DPIA (AIG-ASS-05) | Stand-alone Charter right; confirm the DPIA addresses it for the FRIA. |
| Art. 21 Non-discrimination | ECHR Art. 14 (only within the ambit of Convention rights); Equality Act 2010 protected characteristics | Equality Impact Assessment (AIG-ASS-06); Human Rights Assessment (AIG-ASS-07) | Broader grounds (for example genetic features, language, political or other opinion, membership of a national minority, property, birth); flag Charter-only grounds. |

| *Charter right* | *Nearest ECHR or domestic equivalent* | Council assessment(s) | *Flag for Legal* |
|---|---|---|---|
| Art. 24 Rights of the child | No direct ECHR equivalent | Human Rights Assessment (AIG-ASS-07); Equality Impact Assessment, age (AIG-ASS-06) | Charter-specific; Legal to advise where children are affected. |
| Art. 26 Integration of persons with disabilities | Equality Act 2010 disability provisions and s.149 duty | Equality Impact Assessment (AIG-ASS-06) | Charter-specific; confirm coverage in the EIA. |
| Art. 47 Right to an effective remedy and to a fair trial | ECHR Art. 6; ECHR Art. 13 (not in HRA 1998 Schedule 1) | Contestability and Redress Control (AIG-OPS-04); Human Rights Assessment (AIG-ASS-07) | Broader than ECHR Art. 6; flag for Legal. |

# Proposed integration annex — rights evidence, provenance and review

Status and legal boundary. Proposed corrections and integration text for Council review only; identified text does not establish that any system is in scope or out of scope, certify that a rights assessment is complete, or create a statutory FRIA. The original crosswalk statements have been qualified by explicitly marked proposed corrections. Legal/DPO must confirm territorial scope, current law and timing for the specific deployment and decision date. This remains a design mapping; no blanket conclusion substitutes for case-specific legal analysis.

## System-level evidence joins

Use the governance-issued AIR-ID to link the rights coverage record to the native AIG-INV-04 AI Register record and to the AIG-INV-04 Evidence index. Keep the substantive assessments at their authoritative homes: AIG-ASS-04 Responsible AI Assessment, AIG-ASS-05 DPIA, AIG-ASS-06 Equality Impact Assessment, AIG-ASS-07 Human Rights Assessment, AIG-ASS-09 Model Card, AIG-DEC-03 Governance Decision Record, AIG-DEC-04 Gate Log, AIG-OPS-02 monitoring log and AIG-OPS-04 Contestability and Redress Control. AIG-AIMS-13 Source Assurance and Traceability Register records source-to-control traceability; it does not replace the source or assessment.

- For each mapped assessment or control, record the native artefact/record ID, source sheet and row or document section, version, assessment/evidence date, status, and source as-of/snapshot date. Use an Evidence ID from the native AIG-INV-04 Evidence index where available and retain the location/link.
- Identify affected people/groups, rights risks, oversight, mitigations and remedies only from the current system-specific assessments. Do not infer “no affected groups,” “no risk,” or completed coverage from a blank field or a crosswalk mapping alone.
- Keep missing, unknown, not assessed, not applicable and evidenced absence distinct. Empty evidence fields remain gaps; they are not zero, “none,” or assurance. Mark a source as current only where the responsible specialist has verified the authoritative source/version and recorded the verification date in AIG-AIMS-13.
- A material change in purpose, affected population, model/data/provider, deployment context, or applicable legal source prompts reassessment and decision through the appropriate governance gate. Record the reasoned decision in AIG-DEC-03 and native minutes; record the dated event and any conditions in AIG-DEC-04; monitor relevant measures and complaints/redress through AIG-OPS-02 and AIG-OPS-04.

## Reporting and auditability

Reports should state the AIR-ID, reporting period and snapshot date, identify exactly which rights assessments were reviewed and their versions/as-of dates, list missing or superseded evidence separately, and trace any conclusion to its native evidence reference. A table mapping a right to an artefact indicates a designed coverage relationship, not that an assessment was performed or controls were effective.

For audit sampling, define the system and assessment population, period and selection rationale. Trace sample items from AIR-ID and Evidence ID to the actual native AIG-ASS-04/AIG-ASS-05/AIG-ASS-06/AIG-ASS-07/AIG-ASS-09/AIG-OPS-04 record and source row/section, then to the AIG-DEC-03 decision/minutes and AIG-DEC-04 event/condition where relevant. Check live signals, complaints, challenges, incidents and condition closure in AIG-OPS-02/AIG-OPS-03/AIG-AIMS-08/AIG-OPS-04 as relevant. Record source version, as-of date, selection method, retrieval date and audit criterion. AIG-AIMS-07 provides the audit procedure; missing records are exceptions, not zero results.

## Authoritative sources and references

- Council suite references (confirm each controlled version and current applicability): AIG-INV-04 Evidence index; AIG-ASS-04, AIG-ASS-05, AIG-ASS-06, AIG-ASS-07, AIG-ASS-09, AIG-DEC-03, AIG-AIMS-07, AIG-DEC-04, AIG-OPS-02, AIG-OPS-04 and AIG-AIMS-13. The AIG-AIMS-13 ledger should identify source owner, authoritative URL, version/date and last-verified date; a ledger entry is not independent legal verification.
- Equality Act 2010: https://www.legislation.gov.uk/ukpga/2010/15/contents. Human Rights Act 1998: https://www.legislation.gov.uk/ukpga/1998/42/contents. Apply with current authoritative guidance and case-specific advice; this reference is not a legal conclusion.
- Data Protection Act 2018: https://www.legislation.gov.uk/ukpga/2018/12/contents. UK GDPR text is published by legislation.gov.uk as the retained version of Regulation (EU) 2016/679, as amended: https://www.legislation.gov.uk/eur/2016/679/contents. Confirm current amendments, commencement and regulator guidance with the DPO/Legal.

[PROPOSED CORRECTION — LEGAL OWNER VALIDATION REQUIRED] EU AI Act, Regulation (EU) 2024/1689, as amended by Regulation (EU) 2026/1744 (including Article 27 and Article 113; only where territorial/material scope is engaged): https://eur-lex.europa.eu/legal-content/EN/TXT/HTML?uri=CELEX:02024R1689-20260727 ; amending act: https://eur-lex.europa.eu/legal-content/EN/TXT/HTML/?uri=CELEX:32026R1744. Validate scope, actor role, current text, commencement and system-specific applicability with Legal; the specified Article 113 dates are 2 December 2027 (Annex III) and 2 August 2028 (Annex I).

- ISO/IEC 42001:2023, Artificial intelligence management systems: https://www.iso.org/standard/81230.html. Relevant management-system monitoring, audit and documented-information expectations are subject to licensed-text verification; the standard does not itself establish statutory FRIA scope.
- Council Constitution / Scheme of Delegation and applicable official source records must be confirmed by Legal/Monitoring Officer for decision authority. AIG-AIMS-13 identifies Council-tracked source records; verify the authoritative published instrument and current status at use.

Open items for adoption: Legal/DPO to validate the current consolidated Act, territorial and actor scope, Article 113 timetable, exceptions/transitional rules and case-specific applicability; responsible specialists to verify each mapped assessment and authoritative source/version/as-of date; Council to confirm evidence-index and AIR-ID/decision/event/condition conventions. No assessment, legal determination, source verification, completion status or approval is supplied by this design mapping.

Standards and legal applicability — proposed QA cross-reference

PROPOSED QA INDEX — NOT APPROVED LEGAL ADVICE OR EVIDENCE OF COMPLIANCE. The listed instruments may be relevant to this artefact, but applicability depends on the case, service and Council delegation. Legislation, official guidance, Council policy and voluntary standards are different authority classes. The full 58-entry requirement inventory, authoritative URLs, validation owners and current versions are in AIG-AIMS-05; source checks are in AIG-AIMS-13. Do not treat a template, plan or cross-reference as completed assessment, adopted policy, ISO conformity or legal sign-off.

| Requirement / instrument | Why check it here | Source |
|---|---|---|
| REQ-001 — UK General Data Protection Regulation (UK GDPR), as amended | Where personal data is processed; test each UK GDPR provision separately. | https://www.legislation.gov.uk/eur/2016/679/contents |
| REQ-005 — Equality Act 2010, including Public Sector Equality Duty section 149 | Public authority due regard under s.149; case-level equality screening is not risk-tier gated. | https://www.legislation.gov.uk/ukpga/2010/15/section/149 |
| REQ-006 — Human Rights Act 1998 | Public-authority compatibility under s.6; assess Convention rights engaged by the case. | https://www.legislation.gov.uk/ukpga/1998/42/contents |
| REQ-032 — Regulation (EU) 2024/1689 (EU AI Act), consolidated and amended by enacted Regulation (EU) 2026/1744 | Only after case-specific EU territorial, actor-role and material scope assessment. | https://eur-lex.europa.eu/legal-content/EN/TXT/HTML?uri=CELEX:02024R1689-20260727 ; amending Regulation (EU) 2026/1744: https://eur-lex.europa.eu/legal-content/EN/TXT/HTML/?uri=CELEX:32026R1744 |
| REQ-042 — ISO/IEC 42005:2025 AI system impact assessment | Guidance for AI impact-assessment design; validate edition and selected use. | https://www.iso.org/standard/42005 |